MEMORANDUM

To: Dispatch Team
From: Lena Fairbrook, Operations Manager
Date: March 4, 2025
Re: Revised loading schedule for the Kestrel account

From Monday 10 March, Kestrel Supply Co. loads move to the 06:00 slot at Bay 4. Drivers must confirm pallet counts with the yard office before leaving the depot, and any short load is reported on the shift sheet the same day.

The Tuesday and Thursday runs to Brayford Park stay as they are. Please update the dispatch board and tell the night shift before Friday.

TOLLERBY FREIGHT LTD. - LEGAL DEPARTMENT
PRIVILEGED & CONFIDENTIAL - ATTORNEY-CLIENT COMMUNICATION

March 18, 2025

Marcus Bell
Chief Executive Officer, Tollerby Freight Ltd.

Re: Kestrel Supply Co. - notice of termination

Dear Marcus,

You asked whether we can serve notice of termination on Kestrel Supply Co. now, while their claim for the missed February deliveries is still open. My advice is that we should not serve notice yet. Clause 21 lets either party terminate on ninety days' notice, but serving it during the dispute would let Kestrel argue that we are trying to avoid the indemnity in clause 14.

In my view the indemnity cap in clause 14 is likely to hold for late deliveries, but the position on lost stock is weaker. I recommend that we answer the claim first and revisit termination once the claim is settled or the cap is tested.

Please do not forward this letter outside the executive team.

Sincerely,

Owen Achterberg
General Counsel, Tollerby Freight Ltd.

PROOF OF DELIVERY

Delivery note no.: DN-44817
Date: February 27, 2025
Carrier: Tollerby Freight Ltd.
Consignee: Kestrel Supply Co., Unit 9 Brayford Park
Driver: Tom Okoye
Pallets delivered: 22
Received in good condition: Yes

Received by: J. Morrow, Goods-In Supervisor

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